

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1572

 By: Rosino, Gillespie, and
 Prieto of the Senate

6 and

7 Stinson and Pae of the
8 House

9
10 An Act relating to the State Commissioner of Health;
11 directing the Commissioner to conduct certain
12 feasibility study in collaboration with the
13 Department of Mental Health and Substance Abuse
14 Services; describing feasibility study; directing the
15 study to evaluate certain topics; requiring
16 compilation and submission of certain final report;
17 amending 51 O.S. 2021, Section 6, as amended by
18 Section 1, Chapter 303, O.S.L. 2025 (51 O.S. Supp.
19 2025, Section 6), which relates to officers; creating
20 certain exemption; providing for codification; and
21 declaring an emergency.

22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. NEW LAW A new section of law to be codified
24 in the Oklahoma Statutes as Section 1-103b of Title 63, unless there
25 is created a duplication in numbering, reads as follows:

26 A. For the purpose of ensuring continuity of services, the
27 State Commissioner of Health shall, in collaboration with the
28 Department of Mental Health and Substance Abuse Services, conduct a

1 feasibility study to gather and analyze information and
2 considerations related to a potential consolidation of the State
3 Department of Health and the Department of Mental Health and
4 Substance Abuse Services. The feasibility study shall examine ways
5 the state can improve efficiency, simplify operations, reduce
6 administrative costs, demonstrate outcomes, and provide quality
7 services for the residents of this state.

8 B. The feasibility study shall compare the State Department of
9 Health and the Department of Mental Health and Substance Abuse
10 Services, including a comparison of the areas listed in this
11 subsection, and shall study health agency consolidation initiatives
12 of other states. The feasibility study shall evaluate the following
13 topics:

14 1. Administrative functions of each agency including, but not
15 limited to, inventory, organizational structure and capabilities,
16 management, staffing plans, and operations;

17 2. Finances of each agency, including:

- 18 a. any estimated projected savings to the state through a
19 consolidation initiative,
 - 20 b. reliance on federal, state, and other funding sources,
 - 21 c. cost drivers, and
 - 22 d. return on investment of programs and services; and
- 23
24

1 3. Programs offered by each agency, services provided,
2 populations served, and costs and outcomes related to programs and
3 services. The study shall evaluate:

- 4 a. programs, functions, and services that are
5 duplicative, complementary, or unique to each agency
6 and identify opportunities to align programs and
7 services, and
- 8 b. access to and quality of programs and services and
9 identify any gaps in services.

10 C. The findings of the feasibility study and any
11 recommendations of the Commissioner shall be compiled into a final
12 report, which shall be electronically submitted to the Governor, the
13 President Pro Tempore of the Senate, and the Speaker of the House of
14 Representatives not later than March 1, 2027.

15 SECTION 2. AMENDATORY 51 O.S. 2021, Section 6, as
16 amended by Section 1, Chapter 303, O.S.L. 2025 (51 O.S. Supp. 2025,
17 Section 6), is amended to read as follows:

18 Section 6. A. Except as may be otherwise provided, no person
19 holding an office under the laws of the state and no deputy of any
20 officer so holding any office shall, during the person's term of
21 office, hold any other office or be the deputy of any officer
22 holding any office, under the laws of the state. The provisions of
23 this section shall not apply to:

- 24 1. Notaries public;

1 2. Members of the State Textbook Committee;

2 3. County free fair board members;

3 4. Municipal and county law enforcement officers serving in
4 positions as law enforcement officers of both such governmental
5 entities upon such terms and conditions as are mutually approved by
6 resolutions adopted by the board of county commissioners and
7 governing body of the municipality employing such officers;

8 5. Any person holding a county or municipal office or position,
9 or membership on any public trust authority, who is a member of a
10 board or commission that relates to federal, state, county or
11 municipal government and is created by the United States government,
12 this state or a political subdivision of this state, except where
13 the duties of the offices or positions conflict;

14 6. Any elected municipal officers and school board members who
15 are appointed to a state board, commission, or similar entity if
16 there is no compensation for such services other than reimbursement
17 for necessary travel expenses pursuant to the provisions of the
18 State Travel Reimbursement Act;

19 7. Any trustee of a public trust, who is appointed as a trustee
20 of a different public trust or any trustee of the Tulsa County
21 Public Facilities Authority who may also be employed by the
22 Department of Transportation;

23 8. Law enforcement officers employed by municipal or county law
24 enforcement departments or agencies, other than those law

1 enforcement officers elected or appointed as sheriff, chief of
2 police or some similar position in which they are the head of a
3 county or municipal law enforcement agency, who are elected to local
4 boards of education; provided, the provisions of this paragraph
5 shall not prohibit any law enforcement officer employed by a
6 municipality having a population of ten thousand (10,000) or fewer
7 people from serving as a member of a local board of education;

8 9. Any member of the Oklahoma Highway Patrol Division of the
9 Department of Public Safety who is elected to a local board of
10 education;

11 10. Any employee of the Oklahoma State Bureau of Investigation
12 who is elected to a local board of education;

13 11. Any District Supervisor, Assistant District Supervisor,
14 Team Supervisor, Parole Officer 1 or Parole Officer 2 of the
15 Department of Corrections who is elected or appointed to a city
16 council;

17 12. Any trustee or director of a rural electric cooperative, or
18 port authority who is appointed or elected to a state, county or
19 municipal board, commission or similar entity;

20 13. County employees who are elected as members of town or city
21 councils;

22 14. Municipal, county, state or tribal law enforcement or peace
23 officers operating under cross-deputization agreements with an
24 Indian tribe or branch of the federal government;

1 15. Municipal or county law enforcement or peace officers
2 serving in positions as campus police officers or campus public
3 safety officers pursuant to the provisions of the Oklahoma Campus
4 Security Act, upon such terms and conditions as are mutually
5 approved by resolution adopted by the governing body of the
6 municipality or county and the governing board of the institution of
7 higher education;

8 16. State law enforcement or peace officers serving in
9 positions as campus police officers or campus public safety officers
10 pursuant to the provisions of the Oklahoma Campus Security Act, upon
11 such terms and conditions as are mutually approved by written
12 agreement between the Commissioner of Public Safety and the
13 governing board of the institution of higher education;

14 17. Municipal, county and state law enforcement officers
15 serving in positions as part-time or seasonal rangers or peace
16 officers under the Oklahoma Tourism and Recreation Department or the
17 Grand River Dam Authority;

18 18. Members of the University Hospitals Authority;

19 19. Any person holding a state or county office or position who
20 is a reserve force deputy sheriff, or a reserve special agent with
21 the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control
22 or a reserve municipal police officer;

23 20. Any person holding a state office or position who serves as
24 a special assistant district attorney without compensation;

1 21. Any elected or appointed member of a local school board who
2 is a member of a municipal planning commission;

3 22. Any elected or appointed member of a local school board who
4 is a member or an officer of a volunteer fire department;

5 23. Directors or officers of a rural water district and chiefs
6 of municipal fire departments or rural fire districts who are
7 appointed or elected to an unsalaried office in a state, county,
8 municipal, school, or technology center school board, commission, or
9 similar entity, except where the duties of the office would create a
10 conflict of interest;

11 24. Any person who is a dispatcher or confinement officer at a
12 municipal or county jail who is a noncompensated reserve municipal
13 police officer or a reserve deputy sheriff;

14 25. Any person who is an assistant district attorney serving as
15 a municipal judge or prosecutor;

16 26. Any park ranger under the Oklahoma Tourism and Recreation
17 Department or any game warden or reserve game warden employed by the
18 Department of Wildlife Conservation who is elected or appointed to a
19 local board of education or to a municipal governing body, board,
20 commission or similar entity;

21 27. Members of the Oklahoma State University Medical Authority,
22 the Oklahoma State University Medical Trust or the State Board of
23 Osteopathic Examiners;

1 28. Any member of the state Legislature or any state officer
2 who serves on the board of trustees of the Oklahoma School for the
3 Visual and Performing Arts;

4 29. Members of the Council on Judicial Complaints;

5 30. A campus police officer who is elected as a member of the
6 governing board of a town or municipality that is outside of the
7 town or municipality where the person serves as a campus police
8 officer; ~~and~~

9 31. Any person who is a state employee but not a member of the
10 state military forces, including district attorneys, assistant
11 district attorneys, district court judges, associate district court
12 judges and special judges, when detailed as a military trial judge
13 pursuant to Section 826 of Title 44 of the Oklahoma Statutes or when
14 serving as an appellate military judge pursuant to Section 866 of
15 Title 44 of the Oklahoma Statutes when the Military Court of Appeals
16 is convened. The rules of procedure prescribed by the State Judge
17 Advocate pursuant to subsection L of Section 866 of Title 44 of the
18 Oklahoma Statutes shall define what constitutes the Military Court
19 of Appeals being "convened" for purposes of this paragraph; and

20 32. The State Commissioner of Health, if he or she is appointed
21 as Commissioner of Mental Health and Substance Abuse Services,
22 including on an acting or interim basis, for the limited purpose of
23 conducting the feasibility study described in Section 1 of this act.
24 The provisions of this paragraph shall cease to have effect upon

1 submission of the feasibility study as described in Section 1 of
2 this act.

3 The provisions of this section shall not prohibit any person
4 holding an office under the laws of the state or any deputy of any
5 officer so holding any office from serving upon the board of
6 Oklahoma Futures or upon the board of directors of the Oklahoma
7 Center for the Advancement of Science and Technology. The
8 provisions of this section shall not prohibit a member of the board
9 of directors of the Oklahoma Center for the Advancement of Science
10 and Technology from serving upon the board of Oklahoma Futures.

11 B. Except as provided in subsection C of this section,
12 salaries, emoluments or benefits that would otherwise be paid by the
13 agency or political subdivision to a loaned employee or officer
14 shall instead be paid to the regular employer of such employee. The
15 loaned employee shall in turn be paid regular salary and benefits
16 the same as if continuing regular employment with the permanent
17 employer.

18 C. Any person excepted pursuant to paragraph 31 of subsection A
19 of this section, when retained as a military trial judge or when
20 serving as a military appellate judge when the Military Court of
21 Appeals is convened, shall be entitled to military judicial leave in
22 accordance with Section 209 of Title 44 of the Oklahoma Statutes.

23 SECTION 3. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.
3

4 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
5 OVERSIGHT, dated 04/15/2026 - DO PASS.
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24